

2014 WL 7329689 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Kishan GAYLE, Plaintiff,

v.

CITY OF NEW YORK, P.O. Michael Gonzalez, P.O. Jean Patrick, P.O. **Kevin Mockel**, Sgt. Michael Gee and Officer(s) John and James Doe, names being fictitious and meant to designate additional offending officers, Defendants.

No. 0306448-2014.
December 9, 2014.

Date Purchased:

Summons

[Jonathan L. Gleit](#), Esq., 888 Grand Concourse, Suite 1-O, Bronx, NY 10451, (718) 742-0200, for plaintiff.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint to be assessed by the Court.

Dated:Bronx, N.Y. December 5, 2014

VERIFIED COMPLAINT

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants, respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF KISHAN GAYLE

1. At the time of the commencement of this action, plaintiff KISHAN GAYLE was and still is a resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.
3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about November 9, 2013, P.O. MICHAEL GONZALEZ was employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
6. That on and about November 9, 2013 at approximately 8:30 P.M., P.O. MICHAEL GONZALEZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about November 9, 2013, P.O. JEAN PATRICK was employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
8. That on and about November 9, 2013 at approximately 8:30 P.M., P.O. JEAN PATRICK was working and acting within the scope of his employment as a Police Officer, and under the color of law.
9. That on and about November 9, 2013, P.O. **KEVIN MOCKEL** was employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
10. That on and about November 9, 2013 at approximately 8:30 P.M., P.O. **KEVIN MOCKEL** was working and acting within the scope of his employment as a Police Officer, and under the color of law.
11. That on and about November 9, 2013, Sgt. MICHAEL GEE was employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
12. That on and about November 9, 2013 at approximately 8:30 P.M., Sgt. MICHAEL GEE was working and acting within the scope of his employment as a Police Officer, and under the color of law.
13. That on and about November 9, 2013, OFFICERS JOHN AND JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
14. That on and about November 9, 2013 at approximately 8:30 P.M., OFFICERS JOHN AND JAMES DOE were working and acting within the scope of their employment as Police Officers, and under the color of law.
15. That on or about February 4, 2014, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be served upon the defendant CITY OF NEW YORK, by presenting a copy thereto to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damages or injuries claimed to have been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant and this action was commenced on the claims within one year and ninety days after the happening of the event upon which the claim is based.
16. Plaintiff KISHAN GAYLE appeared and testified at a General Municipal Law §50h hearing on April 8, 2014.
17. That this action is being commenced within one year and ninety days after accrual of the within alleged causes of action, or within the time allowed by law.
18. That on or about November 9, 2013 at approximately 8:30 P.M., at or near the corner of East Kingsbridge Road and South Third Avenue, Bronx, New York, the plaintiff KISHAN GAYLE was subject to excessive force by P.O. MICHAEL GONZALEZ, P.O. JEAN PATRICK, P.O. **KEVIN MOCKEL** and/or Sgt. MICHAEL GEE without proper authority or justification, having no reason in law or in fact to assault KISHAN GAYLE.

19. That without just cause or justification, defendants P.O. MICHAEL GONZALEZ, P.O. JEAN PATRICK, P.O. **KEVIN MOCKEL** and/or Sgt. MICHAEL GEE did attempt to use deadly physical force against plaintiff.

20. That without just cause or justification, defendants P.O. MICHAEL GONZALEZ, P.O. JEAN PATRICK, P.O. **KEVIN MOCKEL** and/or Sgt. MICHAEL GEE did discharge a weapon in an attempt to use deadly physical force against plaintiff.

21. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

22. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiff KISHAN GAYLE was denied rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, physical and psychological, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

23. That this cause of action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#).

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF KISHAN GAYLE

24. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 23 as though more fully set forth herein.

25. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the CITY OF NEW YORK, sued as a person within the meaning of [Title 42 U.S.C. 1983, et seq.](#), by policy, procedure and act, deprived the plaintiff of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fifth Amendment rights of due process of law and to equal protection of the laws, the Eighth Amendment right to be free from cruel and unusual punishment, and to not be subjected to unreasonable, unnecessary and unjustified force or the attempted use thereof, and under [Title 42 U.S.C. 1983, et seq.](#)

26. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of utilizing unnecessary, unreasonable, unjustified force, almost exclusively upon persons of a racial minority, often as a result of improper, inadequate training, the hiring and retention of individuals disposed to violence and malfeasance, and in fostering, permitting, condoning an institutionalized culture of violence and brutality.

27. That said use of excessive, unnecessary, unjustified force are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein.

28. Patterns of such abuse and abuses are well documented in the media and courts, and are exemplified by the injuries and insults that befell upon such individuals such a Jose (Kiko) Garcia, Nicholas Heyward Jr., Amadou Diallo, Patrick Dorismond, Ousmane Zongo, Timothy Stansbury, Sean Bell, Remarley Graham and Akai Gurley, and others, at the hands of New York City Police Department employees in the reckless, negligent and/or unjustified discharge of their service weapons.

29. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

30. That this cause of action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#).

31. That as a result of the foregoing, the plaintiff KISHAN GAYLE was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF KISHAN GAYLE

32. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 31 as though more fully set forth herein.

33. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

34. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper circumstances to discharge a weapon, use deadly force and in the proper utilization of force.

35. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, reckless and wanton conduct, plaintiff KISHAN GAYLE received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

36. That this cause of action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#).

WHEREFORE, Plaintiff demands judgment against the Defendants on the First, Second and Third Causes of Action, inclusive of punitive damages and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y. December 5, 2014

By: **JONATHAN L. GLEIT, ESQ.**

Attorney for PLAINTIFF

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